

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 05/12/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRIV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L23-04389

CASE NAME: CITIBANK N.A. VS. ANDY LOPEZ

*HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT;
FILED BY: CITIBANK N.A.

TENTATIVE RULING:

On 4/16/26, this matter was dismissed, with prejudice, at the request of the Plaintiff.

Thus, this Motion is moot.

Appearance is vacated.

2. 9:00 AM CASE NUMBER: L24-00197

CASE NAME: JPMORGAN CHASE BANK N.A. VS. SHANNON HAGMANN

*HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT
FILED BY:

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant that was listed on the Answer.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$24,252.07, plus costs, less any credits for payments received.

The Defendant made payments of \$13,522.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$10,730.07.

Plaintiff shall prepare and submit a proposed order and judgment.

**3. 9:00 AM CASE NUMBER: L24-02218
CASE NAME: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY VS. CHRISTOFER ACOSTA
*HEARING ON MOTION IN RE: MOTION TO AMEND JUDGMENT AND OF NONAPPEARANCE FILED
BY PLN ON 1/8/26
FILED BY: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY
*TENTATIVE RULING:***

Background

Plaintiff filed a Motion to amend the Judgment, which was entered on 1/13/25, and list the Defendant, Christina Vargas Acosta, as the defendant under Section 5a) of the form of the Judgment.

The Motion was served on the Defendant and is unopposed.

The Judgment, granted 1/13/25, in favor of Plaintiff, inadvertently listed the Defendant as a cross-defendant.

Analysis

California Code of Civil Procedure §187 provides that a California court may use "all the means necessary" when the course of proceeding is not specifically provided for by the Code of Civil Procedure or other statute to carry its jurisdiction into effect:

"... When jurisdiction is, by the Constitution or this Code, or by any other statute, conferred on a Court or judicial officer, all the means necessary to carry it into effect are also given; and in the exercise of this jurisdiction, if the course of proceeding be not specifically pointed out by this Code or the statute, any suitable process or mode of proceeding may be adopted which may appear most conformable to the spirit of this code." Code of Civil Procedure Section 187.

California Code of Civil Procedure §473 (d) further provides that the court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.

In the instant matter, the entry of Defendant as a Cross Defendant in the Judgment was clearly a clerical error. This court will exercise discretion and grant Plaintiff leave to amend the Judgment and list Defendant in the appropriate section of the form.

Disposition

Motion of Plaintiff is granted.

Plaintiff shall prepare and submit a proposed order and amended judgment.

4. 9:00 AM CASE NUMBER: L24-02377

CASE NAME: BANK OF AMERICA N.A. VS. CARLOS GONZALEZ

***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION FILED BY PLN ON 11/24/25**

FILED BY:

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely. Notice was provided by mail to counsel for Defendant.

This Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee

payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$17,131.94, plus costs, less any credits for payments received.

The Defendant made payments of \$5,500.

Costs are \$523.61. A memo on costs was filed 11/24/25.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$12,155.55.

Plaintiff shall prepare and submit a proposed order and judgment.

5. 9:00 AM CASE NUMBER: L24-03699
CASE NAME: MERCURY CASUALTY COMPANY VS. JAYLIN LOFTON
***HEARING ON MOTION IN RE: MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED AS TO**
JANICE ARMSTRONG
FILED BY: MERCURY CASUALTY COMPANY
TENTATIVE RULING:

Plaintiff filed Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration and Memorandum, originally scheduled for 4/21/26. Neither party appeared on 4/21/26, and the motion was continued to 5/12/26.

However, it appears that the court did not provide notice to either party of the 5/12/26, date.

Disposition

The Motion will be continued to 8/11/26, 9am.

The court will notify the parties.

6. 9:00 AM CASE NUMBER: L24-04875
CASE NAME: WESTLAKE SERVICES LLC VS. DAVID SISNEROS
***HEARING ON MOTION IN RE: STRIKE ANSWER TO CROSS-COMPLAINT AND FOR ENTRY OF**
DEFAULT
FILED BY: SISNEROS, DAVID
TENTATIVE RULING:

Defendant, and Cross Complainant, has filed a Motion to Strike Plaintiff's, and Cross Defendant's, Answer to the Cross Complaint, as well as a Request for Default Judgment.

Background

The court takes judicial notice of the pleadings filed in this docket.

Cross-Complainant filed the Cross Complaint on 2/28/25. No proof of service on the Cross-Defendant was attached. The docket reflects that no proof of service of the Cross Complaint has ever been filed. The docket entry of 2/24/25, reflects that an attempt to file a Cross Complaint on 12/26/24, was rejected by the Office of the Court Clerk.

Cross-Defendant filed an Answer to the Cross Complaint on 10/31/25.

Analysis

California Rule of Court 3.110 governs the time for service and filings of initial pleadings. Cross-Defendants normally have no more than 30 days within which to respond to a Cross Complaint, otherwise they face the risk of default judgment.

However, this clock is triggered by service of process on the Cross-Defendant, as well as proof of that service. See *CCR 3.110*.

In the instant matter, Cross-Complainant provided, in his Motion, exhibits purporting to show that Cross-Defendant was served with process, none of these exhibits reflect the service of any documents occurring on or after 2/28/25. Thus, there is no evidence of the date on which the Cross Complaint was served, or that the clock for Cross-Defendant to file their Answer ever began.

Cross-Complainant has not met its burden to show that Cross-Defendant failed to file an Answer within 30 days of service of the Cross Complaint.

Disposition

Cross-Complainant's Motion to Strike and Request for Default Judgment are denied.

Cross-Defendant shall prepare and submit the order.

7. 9:00 AM CASE NUMBER: L24-06534

CASE NAME: CITIBANK N.A. VS. MARIA MOJICA

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY:

***TENTATIVE RULING**

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion

and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant upon where service of process was effected, via substitute service. Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$5,064.35, plus costs, less any credits for payments received.

The Defendant made payments of \$4,000.

Costs are \$603.61. A memo on costs was filed 12/9/25.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$1,667.96.

Plaintiff shall prepare and submit a proposed order and judgment.

8. 9:00 AM CASE NUMBER: L24-08890

CASE NAME: BANK OF AMERICA, N.A. VS. JED MANAYON

***HEARING ON MOTION IN RE: VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: BANK OF AMERICA, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was personally served with process.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee

payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$3,987.96, plus costs, less any credits for payments received.

The Defendant made payments of \$2,002.

Costs are \$603.61. A memo on costs was filed 2/3/26.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$5,035.26.

Plaintiff shall prepare and submit a proposed order and judgment.

9. 9:00 AM CASE NUMBER: L24-10797

CASE NAME: WELLS FARGO BANK, N.A. VS. JOSEPHINE RAVAGO

***HEARING ON MOTION IN RE: PLAINTIFF'S NOTICE OF MOTION AND MOTION FOR JUDGMENT ON THE PLEADINGS (MOTIONS)**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Judgment on the Pleadings. The motion was timely served by mail on counsel for Defendant. The Motion is unopposed.

On 10/21/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions. All requests for admission, provided in the declaration filed 6/13/25, were deemed to be true by the court.

The court takes judicial notice of the Complaint, the Order on the Motion to deem matters admitted, as well as the declaration filed by the Plaintiff on 6/13/25.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint alleges Breach of Contract as the cause of action, based on the allegation that

Defendant became indebted in the amount of \$25,957.12, on a credit card account.

Defendant's Answer denies the allegations of the Complaint and states various affirmative defenses.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the "RFAs") served on Defendant which was granted by the Court. See Order entered 10/21/25 (the "Deemed Admitted Order"). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$25,957.12.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 ("Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.").

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall prepare and submit the order.

10. 9:00 AM CASE NUMBER: L25-00294
CASE NAME: WELLS FARGO BANK, NA VS. JORGE HERNANDEZ
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: WELLS FARGO BANK, NA
TENTATIVE RULING:

Background

Plaintiff filed a Motion for Judgment on the Pleadings. The motion was timely served by mail on Defendant. The Motion is unopposed.

On 10/21/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions ("Deemed Admitted Order"). All requests for admission, provided in the declaration filed 6/9/25, were deemed to be true by the court.

The court takes judicial notice of the Complaint, the Order on the Motion to deem matters admitted, as well as the declaration filed by the Plaintiff on 6/9/25.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint

states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff’s Complaint alleges Breach of Contract as the two causes of action, based on the allegation that Defendant became indebted in the amount of \$15,058.69, on a credit card account.

Defendant’s Answer denies the allegations of the Complaint.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the “RFAs”) served on Defendant which was granted by the Court. The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$15,058.69.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall prepare and submit the order.

11. 9:00 AM CASE NUMBER: L25-10487
CASE NAME: MIDLAND CREDIT MANAGEMENT INC. VS. THU QUACH
***HEARING ON MOTION IN RE: SET ASIDE DEFAULT**
FILED BY: QUACH, THU
***TENTATIVE RULING**

Defendant filed a Motion to Set Aside Entry of Default. However, there is no evidence that the Plaintiff was given notice of the Motion or the hearing.

Disposition

Motion will be continued to 7/21/26, 9am.

Defendant to provide notice of Motion to Plaintiff.

Court will file Order of continuance.

12. 9:00 AM CASE NUMBER: MS25-1096

CASE NAME: EQUITY RESIDENTIAL MANAGEMENT, LLC VS. SARAH SHEPARD

***HEARING ON MOTION IN RE: DEEM PLAINTIFF S REQUESTS FOR ADMISSIONS ADMITTED**

FILED BY: EQUITY RESIDENTIAL MANAGEMENT, LLC

TENTATIVE RULING:

Background

Plaintiff filed Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted, as well for the Authenticity of Records, (Motion), along with a Declaration and Memorandum.

Plaintiff attached the particular facts at issue in their Exhibit A to their Declaration.

Plaintiff attached a proof of service of their discovery request, indicating mail service to both defendants at the address listed on their jointly filed Answer.

Plaintiff also timely served, by mail, notice of this Motion.

Defendants neither responded to the discovery request, nor to this Motion.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers – namely, Items 1 and 2 in the Request for Authenticity of Documents; and items 1 through 81 in the Request for Admission of the Truth of Facts - shall be deemed admitted.

Plaintiff to prepare and submit the Order.

This matter will be re-assigned to Department 50, Commissioner Eichenberger, with a hearing scheduled for 5/18/26, 1:15 pm.

13. 9:00 AM CASE NUMBER: MSL21-02132

CASE NAME: CAPITAL ONE BANK VS ISRAEL

***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION FILED BY PLN ON 11/24/25**

FILED BY:

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant that was the same as that listed in the Answer.

The parties entered into a CCP 664.6 agreement, filed on 11/1/24, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$5,174.39, plus costs, less any credits for payments received.

The Defendant made payments of \$3,854.39.

Costs are \$432. A memo on costs was filed 11/24/25.

The Stipulated Agreement was filed 11/1/24.

A dismissal was entered on 12/10/24.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$1,752.

Plaintiff shall prepare and submit a proposed order and judgment.

14. 9:00 AM CASE NUMBER: N25-2130
CASE NAME: DEEPAK MOORJANI VS. ROBBY DATTA
***HEARING ON MOTION IN RE: MONETARY SANCTIONS AGAINST PLAINTIFF**
FILED BY: DATTA, ROBBY
TENTATIVE RULING:

The parties are to appear on 5/12/26. The court will issue a ruling from the bench.

15. 9:00 AM CASE NUMBER: N25-2138
CASE NAME: DEEPAK MOORJANI VS. GENOVEVA SIRLOPU
***HEARING ON MOTION IN RE: MOTION FOR MONETARY SANCTIONS FILED BY**
FILED BY: SIRLOPU, GENOVEVA
TENTATIVE RULING:

The parties are to appear on 5/12/26. The court will issue a ruling from the bench.

16. 9:00 AM CASE NUMBER: N25-2433
CASE NAME: UFCW-NORTHERN CALIFORNIA EMPLOYERS JOINT PENSION TRUST FUND (FUND NO. 100) VS. JUG SHOP, INC.
HEARING IN RE: VERIFIED PET. TO CONFIRM ARBITRATION AWARD & FOR ATTY FEES (CONT FROM 1/20/26)
FILED BY:
***TENTATIVE RULING**

Background

Plaintiff has filed a Petition to confirm an arbitration award and for attorneys' fees. The Petition contains exhibits of over 200 pages, and Plaintiff often refers to particular sections of these exhibits yet makes nothing more than a broad citation to the entire exhibit. One example concerns the section of the Pension Agreement, in Exhibit B, that contains the provision requiring binding arbitration for any contribution disputes. This particular exhibit is over 100 pages, yet Plaintiff makes no attempt to identify the particular page – or pages – where this provision lies. Plaintiff simply cites to Exhibit B.

There are other examples of a similar vein.

The court is not going to wade through hundreds of pages of exhibits to find a particular, salient clause.

This court already pointed out this very problem in its order to continue this Petition, which was originally scheduled for 3/24/26, yet it does not appear Plaintiff took any corrective measures.

Disposition

Parties to appear on 5/12/26.

Petitioner shall be prepared to cite specific pages of their exhibits to support their arguments.

17. 9:00 AM CASE NUMBER: RS24-0953
CASE NAME: BG ASSET MANAGEMENT, INC. VS. LISA DAVIDSON
***HEARING ON MOTION IN RE: FOR LEAVE TO FILE A FIRST AMENDED CROSS-COMPLAINT**
FILED BY: DAVIDSON, LISA M.
TENTATIVE RULING:

Cross Complainant filed a Motion for leave to file a First Amended Cross Complaint, on 12/24/25. The Motion was timely filed and served.

Cross Defendants filed a response.

Background

The original Complaint, in which Cross Defendant BG Asset Management was the Plaintiff, was filed on 12/6/24, as an Unlawful Detainer. The lease agreement at issue covered a period beginning 6/1/22, through approximately 10/24/24, when notice was given to pay rent or quit. Subsequently, possession was no longer an issue. and Cross-Complainant filed a Cross Complaint on 7/29/25.

On 7/29/25, Cross Complainant filed a Cross Complaint ("Cross Complaint") in which only BG Asset Management was named as a Cross Defendant, and which alleged various forms of Breach of Contract, as well as a Common Count, all stemming from what appears to be the same lease agreement in the original Complaint. The facts centered on claims that the Cross Defendants did not maintain a habitable residence and engaged in retaliatory behavior that precluded Cross Complainant from the enjoyment of her home.

Cross Complainant sought damages of approximately \$42,653.09

Cross Defendant filed an Answer to the Cross Complaint on 8/28/25, then Cross-Complainant filed for leave to amend the Cross Complaint on 12/24/25.

In the proposed First Amended Cross Complaint ("FACC"), which is included as Exhibit One in the declaration of Cross Complainant's counsel ("Declaration"), filed 12/24/25, Cross Complainant adds Marc Guzman as a Cross Defendant, in addition to BG Asset Management. The FACC alleges that the Cross Defendants were owners, managers, employees or representatives of these parties. The FACC alleges a greater number of causes of action than the Cross Complaint, and the factual allegations are broader, but the crux appears to be similar to the allegations in the Cross Complaint: Cross

Defendants, despite ample notice, failed to repair a number of defects in the unit that affected habitability; and that Cross Defendants engaged in a pattern of harassment during the lease period.

Damages in the FACC are significantly greater than what was originally sought in the Cross Complaint.

Cross Complainant further claims that the reason these allegations were not made in the Cross Complaint was because she was self-represented and was simply unaware of the legal significance of the factual circumstances.

Cross-Defendants offer a number of arguments against allowing leave to amend. First, they argue that the amended cross-complaint offers no personal liability for Mr. Guzman, the CEO of the cross-defendant corporation. Next, they argue that counsel for Cross-Complainant apparently conceded, in a communication to them, that Cross-Complainant agreed that Mr. Guzman should not be named as a cross defendant.

Cross-Defendants further contend that they would incur prejudice by virtue of the amended filing because it adds further legal cost for the preparation of a defense. And, that equities sway the court to deny leave, given that Cross Complainant spurned a number of Cross Defendants' attempts, beginning on 12/9/25, to agree to an amended Cross Complaint, as well as overtures to settle.

In addition, Cross Defendant argue that the purpose of adding Mr. Guzman to the Cross Complaint is simply to intimidate Cross defendant.

Moreover, they contend that the statutes under which Cross-Complainant seeks relief do not apply. Cross Defendants argue that the lease at issue is not subject to the "just-cause" requirements of Section 1946.2 of the CCP, and that the cause of action alleging Retaliation, under Section 1942.5 of the Civil Code, is not available to a tenant who has defaulted on the payment of rent.

Finally, Cross-Defendants go on to argue that the damages are improper.

No trial date has been set.

Analysis

A trial court can permit the amendment of any pleading at any time. *CCP Section 473(a)*. In fact, courts should be quite liberal in permitting such amendments unless the statute of limitations has not expired, and the opposing party will not suffer prejudice. *Harris v. City of Santa Monica* (2013) 56 Cal4th 203, 240. Factors

The factors for a court to consider include the moving party's conduct and the timeliness of the amendment. *Duchrow v. Forrest* (2013) 215 CA4th 1359, 1377. Additional factors are whether granting such leave will lead to a "delay in trial, loss of critical evidence, or added costs of preparation. *Kolani v. Gluska* (1998) 64 CA4th 402, 412.

A defendant's cross complaint is compulsory if the cause of action "arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action...in [the] complaint. Code of Civ Procedure Section 426.10(c). Causes of action arise out of the same transaction or occurrence if

the factual or legal issues are logically related. “[T]ransaction is construed broadly; it is not confined to a single, isolated act or occurrence...but may embrace a series of acts or occurrences logically interrelated.” *Heshejin v. Rostami* (2020) 54 CA5th 984, 993-994.

To be considered a compulsory cross-complaint, the cause of action must have existed at the time Defendant served its answer to the complaint. CCP Section 426.30(a),

The court has the discretion to allow a defendant to file a cross-complaint at any time during a lawsuit. “The court ... shall grant ... leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action. *CCP 426.50*; *Silver Organizations Ltd. v. Frank* (1990) 217 CA3d 94, 98-99.

If a party fails to assert a cause of action in a cross complaint that existed at the time of serving their answer to the complaint, the party will be barred from raising the action in any other action. *CCP 426.50(a)*.

In the instant matter, the facts on which the causes of action from the FACC hinge clearly arise from the same transaction as those in in the Cross Complaint. Everything stems from the alleged disrepair of the residential unit in which Cross Complainant lived, and the alleged conduct of the Cross Defendants after Cross Complainant voice her complaints about her unit’s uninhabitability. It would seem that, should Cross Complainant not raise these additional causes of action in the FACC, she would be barred from ever doing so.

Next, it doesn’t appear that Cross Complainant is acting in bad faith. She filed this FACC about 5 months after the Cross Complaint, which is not a very long time. That Cross Complainant failed to submit a more robust Cross Complaint at the first go does not demonstrate bad faith. If anything, her move to hire counsel afterward reflects an acknowledgment that she may have been out of her depth, and acted to find the assistance of counsel to move the case along. Five months does not seem a very long time period within which to find counsel, have the new counsel review the case, and then file appropriate pleadings. And that Cross Complainant did not acquiesce to the overtures of Cross Defendants with respect to the language of an Amended Cross Complaint or their settlement offer reflects nothing more than mere disagreement, not bad faith.

Since there is no trial date set, it is unclear why the additional allegations and causes of action in the FACC would add significant cost to the Cross Defendants’ preparation of a defense. The transaction is the same. Cross Defendants have been aware of the facts alleged in the FACC for some time.

And though Cross Defendants argue that Cross Complainant has added Mr. Guzman as a Cross Defendant with the intended purpose of intimidating Cross Defendants, Cross Defendants don’t offer an adequate explanation in their response – if any was offered at all – supporting this claim. This court does not see any reason to draw this inference.

In summary, the court, after finding no bad faith by the Cross Complainant, and that Cross Defendants will not serve any prejudice as a consequence of the filing, will grant Cross Complainant leave to file

the FACC.

The additional arguments made by Cross Defendants – that the statutes under which Cross Complainant seeks relief do not apply, or that the FACC fails to state a claim of personal liability against Mr. Guzman – seem more appropriate for a Demurrer.

Disposition

Cross Complainant's Motion for leave to file the FACC is granted.

Cross Complainant to file the FACC within 5 days of this ruling, which is within 5 days of 5/12/26.

Cross Complainant is to prepare and order reflecting this ruling.

Parties are on notice that the court intends to reclassify this matter as an unlimited civil matter at the next CMC, which is 5/27/26.